

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SOUTH KOREA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in South Korea, grounded in the Environmental Impact Assessment Act, the administrative-review and court systems, the environmental-dispute route, and documented residents' movements

This guide uses the Korean legal terms you will actually encounter (the EIA Act and its resident-opinion procedure, the "EIA area" standing rule, administrative appeal and administrative litigation, the Environmental Dispute Mediation Committee, the information-disclosure law, and so on), each explained in plain language where it first comes up. It describes the national framework; the metropolitan cities and provinces and the si/gun/gu each have their own competences and ordinances — check locally.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up.

A note on money. Budgets in this guide are in Korean won (KRW). Every figure is indicative — Korean community campaigns range from near-zero (volunteer-run, pro-bono lawyers, free public data) to funded efforts that commission independent studies. Treat the ranges as a menu, not a bill.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in South Korea — and the levers are specific, so knowing which ones work is half the battle. Korea's **Environmental Impact Assessment Act** (환경영향평가법) requires large projects to be assessed before approval and, distinctively, obliges the developer to **gather the opinions of local residents** — through public briefings and, if residents request, **public hearings** — and to record whether those opinions were reflected. The assessment ends not in a simple veto but in a **consultation with the Ministry of Environment** whose agreed conditions bind the developer. And Korean courts have developed a standing rule that is unusually favourable to affected communities: **residents living within the designated "EIA area" are presumed to have a legally protected interest** and so can sue to challenge an approval — a doctrine built through the great reclamation and infrastructure cases.

That is a real toolkit. The honest counterweight is that the system leans toward development — Korea's growth model has

long favoured large infrastructure, energy, and construction projects, developers and the state are closely coordinated, and public participation, while guaranteed, is often treated as a box to tick. Courts, though independent, are cautious about substituting their judgment for the agency's. Communities across Korea — fighting reclamation (Saemangeum), high-voltage transmission towers (Miryang), tunnels and high-speed rail through mountains (the Cheonseong Mountain "salamander" case), incinerators, landfills, industrial complexes, and base and resort construction — have organised anyway, and while outright court wins are hard, delay, redesign, binding conditions, mediation awards, and political defeat of projects are all achievable.

What "winning" realistically means. Rarely a court order that permanently stops a project. More often: an approval declared void because the EIA was skipped or fatally defective; conditions tightened through the MOE consultation; compensation and modification won through **environmental dispute mediation**; a project delayed for years until its economics or politics change; a governor or mayor persuaded to withhold cooperation; or a redesign that removes the worst harm. Each has happened. The realistic goal is to make the project slow, costly, and legally and politically exposed — and to use the EIA-area standing, the resident-opinion procedure, the dispute-mediation route, and organised residents' movements that Korea actually responds to.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down what is proposed, which agency approves it, under which assessment tier, and the date the decision becomes final.
2. **Documentation** — build an evidence record strong enough for the resident-opinion procedure, the MOE consultation, dispute mediation, and, if needed, the courts.
3. **Local opposition** — organise a durable residents' movement, because sustained local pressure is what Korea's system responds to most.
4. **Legal challenges** — use the resident-opinion procedure, then administrative appeal, administrative litigation, and environmental dispute mediation.
5. **Media strategy** — generate coverage that raises the political cost of approval.

No single step wins alone. The combination — local pressure plus the EIA-area standing, the resident-opinion procedure, and the mediation route — is what works.

A realistic picture of the odds. Be honest with your community from the start about what is likely. Most large projects that reach approval in Korea are approved, often with conditions — an outright void or refusal is the exception, not the rule, though it happens where the EIA was skipped or fatally defective. The more common wins are incremental and cumulative: tighter MOE conditions that raise the project's cost; compensation and operational modification won through dispute mediation; a delay of months or years that changes the economics or lets an election intervene; a procedural defect that forces the assessment to be redone; or a governor who withholds cooperation. None of these is a single dramatic veto, but each is a real outcome that has stopped, shrunk, or reshaped real Korean projects. And Korea's landmark fights show a further truth: a campaign can "lose" the specific project yet win years of delay, compensation, and lasting national policy change. A campaign that measures itself only against total victory will feel like it is losing even as it wins; one that banks each delay, each condition, and each concession keeps morale and momentum. Plan for a marathon, not a sprint.

Your rights here are real, not favours. Korea's Constitution recognises the right to a healthy environment, the EIA Act guarantees a resident-opinion procedure and a right to demand a public hearing, and the Official Information Disclosure Act gives a strong right to public records. That framing matters practically: when a developer runs a token briefing instead of a real hearing, draws the EIA area to exclude affected residents, or an agency stonewalls a records request, it is not merely being unhelpful — it is potentially breaching obligations you can enforce through the information-disclosure appeal, the Central Administrative Appeals Commission, and the courts. Approach the process as a rights-holder, not a supplicant.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Korea's system leans toward development, and participation is often a formality. Assessing that honestly helps you choose the right tools: the strongest routes are usually a rigorous intervention in the resident-opinion procedure, an approval challenged by residents **inside the EIA area** (who have presumed standing), the **environmental dispute mediation** route for pollution and damage, and sustained civic and political pressure on the governor and mayor. A tilt changes which lever works; it does not remove them all. Section 10 deals honestly with tilted situations, including national-priority projects and how to plan around them.

How to use this guide

Read Sections 1–3 once. Then work Section 4 (Target Identification) immediately — it produces the facts every other step needs, above all your deadlines and which agency and assessment tier apply. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, whether and when to keep going.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. South Korea is a unitary state with meaningful local government: power over land and environment is shared between the **central government** (led by the Ministry of Environment and the sector ministries), the **metropolitan cities and provinces** (광역자치단체 — the 17 top-tier local governments led by mayors and governors), and the **basic local governments** (기초자치단체 — the si/gun/gu, led by mayors and county heads). Most fights turn on the approving agency and the local government.

The levels of government — and what each one controls

The basic local government (si/gun/gu). The city, county, or district handles many local permits, land-use decisions, and consultations, and — importantly — can enact its own **ordinances** (조례), sometimes stricter than national rules. The mayor or county head (시장·군수·구청장) and the local council (지방의회) are where local politics is decided, where a project needs practical cooperation, and where a local government that formally opposes a project or withholds a permit can stall it even where it cannot legally veto it.

The metropolitan city or province (광역시). The mayor or governor (시장·도지사) holds broad authority over regional planning and many environmental permits, runs regional environmental offices, and sets regional ordinances. For many projects the governor's stance — cooperative or resistant — is decisive, which makes the governor a key political target, especially for projects that cross several basic local governments.

The central government. The **Ministry of Environment (환경부)** administers the **EIA Act** and is the **consulting agency** whose agreement on the assessment binds the developer; its **regional environmental offices** (지방환경청) handle much of this locally. Sector ministries and agencies (land and transport, trade/energy, and the state-owned enterprises like the power company) approve and often build large projects, and hold wide discretion. The **approving agency** (the body that grants the project's licence or approval) is distinct from the MOE that consults on the EIA.

Which one is "yours"? Ask: which approval does this project actually need, and who grants it — and who is the MOE regional office that consults on its EIA? A large project runs through an **approving agency** plus an **EIA and MOE consultation**; a smaller one may need only a **Small-Scale EIA**; a local facility (a landfill, an incinerator, a factory) needs **local-government permits** and is shaped by local ordinances. Pinning this down is Step 1, and it decides the deadlines, the assessment tier, and — crucially — whether you are inside the **EIA area** that gives residents presumed standing.

How a decision is actually made — the journey of a project

Korea runs a three-tier assessment system: **Strategic Environmental Impact Assessment (SEIA — 전략환경영향평가)** for higher-level plans, full **Environmental Impact Assessment (EIA — 환경영향평가)** for large projects, and **Small-Scale EIA (소규모 환경영향평가)** for smaller developments in sensitive areas. For a full-EIA project the path is roughly:

1. **Scoping and the draft assessment report.** The developer (project implementer) prepares the assessment, defining the **EIA area** — the geographic zone expected to be affected. Who is inside this area matters enormously later, because it determines presumed standing.
2. **Gathering residents' opinions (주민의견 수렴).** The developer must publicise the draft report and **collect residents' opinions** through public briefing sessions, and — **if residents request it** — **hold a public hearing (공청회)**. This is your main formal moment. The developer must then record whether opinions were reflected.
3. **The final report and MOE consultation (협의).** The developer submits the final report to the **approving agency**, which consults the **Ministry of Environment**; the MOE's agreed conditions become binding, and the developer must carry them out and submit to **follow-up monitoring**.
4. **Approval.** The approving agency grants the project's licence or approval, incorporating the agreed conditions. **A critical rule: if approval is granted where an EIA was legally required but not done, the approval is null and void** — the single strongest legal fact in the Korean system.
5. **Post-approval monitoring.** The developer must implement the agreed measures and undergo follow-up survey;

failures are grounds for complaint and enforcement.

Beyond the EIA, the project needs its **local-government permits** and must satisfy **local ordinances** — frequently sharper points of leverage than the national assessment.

The rulebook — the policies that decide the outcome

- **The EIA Act and its resident-opinion procedure.** Was assessment required and properly done? Were residents' opinions genuinely gathered — and, where requested, was a public hearing held? A skipped or fatally defective EIA voids the approval.
- **The Framework Act on Environmental Policy.** Sets the polluter-pays principle and underpins compensation for pollution damage.
- **Pollution-control and sector law.** Air, water, noise/vibration, waste, and soil statutes — plus stricter local ordinances — set standards a project must meet.
- **Land-use and nature law.** Zoning, the greenbelt (development-restricted zones), forest, and protected-area and wetland rules add permits and grounds; the Ramsar and ecological-protection designations have featured in major fights.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Large projects bring investment, construction jobs, and local revenue; energy and infrastructure enjoy strong ministry and state-enterprise backing; land is valuable; and Korea's development-first tradition and close government-business coordination all tilt toward approval. Local governments often want the investment. None of this is illegal, but it explains the default lean — and why the community's best levers are the EIA-area standing, the resident-opinion and MOE-consultation weaknesses, the dispute-mediation route, the governor's or mayor's cooperation, and organised residents' movements, rather than trust in the process leaning your way.

The overseers — who watches the decision-makers

- **The administrative courts and the Supreme Court** (there is no specialised environment court) — they can void unlawful approvals and, where standing exists, review dispositions; residents inside the EIA area have presumed standing.
- **The Central Administrative Appeals Commission (중앙행정심판위원회)** — hears administrative appeals, a cheaper and faster route than court.
- **The Environmental Dispute Mediation Committee (환경분쟁조정위원회)** — a distinctive, low-cost body that mediates and adjudicates pollution-damage disputes and awards compensation, without a full court case.
- **The Board of Audit and Inspection (감사원)** and local audit bodies — for public money and maladministration.
- **The National Human Rights Commission** — for rights impacts.
- **The Anti-Corruption and Civil Rights Commission (ACRC)** and the prosecutors — for corruption and civil-rights complaints.

Naming the right body signals you understand the system, and involving the governor or the local council early — and, for pollution damage, the Environmental Dispute Mediation Committee — can change a project's whole trajectory.

A quick map of the words you will actually hear

The vocabulary is half the barrier, so here is the shorthand in plain terms. The **EIA (환경영향평가)** is the assessment a large project must pass; **SEIA** is the strategic version for plans, and **Small-Scale EIA** covers smaller developments in sensitive areas. The **assessment report** is the document the developer submits; the **EIA area** is the affected zone the developer draws around the project — remember this phrase, because living inside it usually gives you presumed standing to sue. The **resident-opinion procedure (주민의견 수렴)** is your formal chance to object, and you can **demand a public hearing (공청회)**. The **approving agency** grants the project's licence; the **Ministry of Environment (환경부)** is the body it must **consult (협의)**, and the MOE's agreed conditions bind the developer. **Administrative appeal (행정심판)** goes to the **Central Administrative Appeals Commission** — cheaper and faster; **administrative litigation (행정소송)** goes to court to **revoke** or **void** an approval. The **Environmental Dispute Mediation Committee (환경분쟁조정위원회)** is a low-cost body that awards **compensation** and **modification** for pollution damage without a full trial. **Suspension of execution (집행정지)** is the emergency brake you seek to stop works while a case runs, and the **Official Information Disclosure Act** is how you force out documents. Keep this list to hand — using the right term in an opinion or a letter signals that you understand the system and cannot be brushed off.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Korean and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Korea sits inside the table: the **EIA-area standing rule**, the **resident-opinion procedure**, and the **environmental dispute mediation** route make the participation-and-legal path genuinely usable — but a national-priority project backed by a ministry or state enterprise is a hard fight, so combine every lever with local and political pressure.

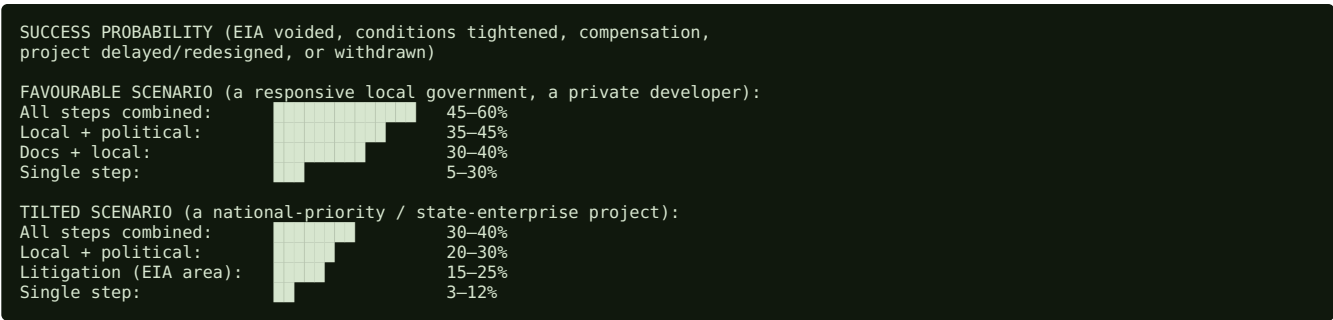
Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (KRW)	What "Success" Means
Documentation only	5-10%	3-4 months	₩500,000-8,000,000	Project slowed; public better informed
Local opposition only	20-30%	6-18 months	₩1,000,000-20,000,000	Local pressure; governor/mayor takes notice
Resident-opinion procedure only	10-20%	1-3 months	₩500,000-5,000,000	On record; can shape MOE conditions
Administrative litigation only	15-25%	24-48 months	₩5,000,000-50,000,000	Void/annul; residents inside EIA area have standing
Dispute mediation only	20-30%	6-18 months	₩100,000-5,000,000	Compensation/modification; low-cost
Media only	10-15%	3-6 months	₩500,000-5,000,000	Public knows; no action by itself
Docs + local opposition	30-40%	12-18 months	₩3,000,000-30,000,000	Pressure plus tightened MOE conditions
Local opposition + political	35-45%	12-24 months	₩2,000,000-30,000,000	Governor/mayor withholds cooperation
Litigation + mediation + docs	30-45%	24-48 months	₩8,000,000-60,000,000	Void approval / compensation / modification
All steps combined	45-60%	18-48 months	₩15,000,000-120,000,000	EIA voided, conditions tightened, compensation, delay/redesign, or project withdrawn

Key insight: all steps together are several times more effective than any single one — and in Korea the mix that works leans on **local pressure + the EIA-area standing route + the resident-opinion procedure + dispute mediation**, not any single lever. The distinctive Korean advantage is that residents inside the EIA area can actually get into court, and that the mediation committee offers a low-cost route to compensation and modification.

A note on legal cost: the resident-opinion procedure, information-disclosure requests, and dispute mediation are free or low-cost. Administrative litigation needs a lawyer and carries filing costs and, if you lose, some cost exposure; public-interest legal groups, university clinics, and lawyers from environmental networks take some cases at reduced rates. The main unavoidable cost is good expert evidence.

Effectiveness Visualization



How to read this honestly. In Korea, the strongest legal fact is a **skipped or fatally defective EIA** (which voids an approval), and the strongest access fact is **living inside the EIA area** (which gives presumed standing). Where a project

is a national priority pushed by a ministry or a state enterprise (as with major reclamation and transmission projects), even a strong case is hard, and the fight often runs for years. But even a "loss" that delays a project, tightens its conditions, wins compensation through mediation, or turns a governor against it is a real outcome — Korea's biggest project fights reshaped policy even when the project proceeded.

Step Importance Ranking (When All Combined)

1. **Local opposition** — a durable residents' movement is the engine; Korea's system responds to sustained, organised local pressure.
2. **Documentation** — the raw material for the resident-opinion procedure, the MOE consultation, mediation, and any court case.
3. **The EIA-area standing and litigation route** — the distinctive path that actually gets residents into court.
4. **The resident-opinion procedure and dispute mediation** — cheap, essential, and (for mediation) a real route to compensation and modification.
5. **Media and political pressure** — the amplifiers that move the governor, mayor, and council.

Winning Korean campaigns combined a durable residents' movement, a rigorous evidence file, a rigorous resident-opinion intervention, an EIA-area standing challenge or dispute-mediation claim, sustained media, and political pressure on the governor and mayor — no single track alone.

What Korean Campaigns Actually Show

A few patterns recur across documented Korean fights. The **EIA-area standing rule genuinely opens the courthouse door** — the great reclamation and infrastructure cases established that residents inside the assessment zone can sue, which is why defining and proving your place inside that zone matters so much. A **skipped or fatally flawed EIA is the strongest legal card**, because it can render an approval void. **Environmental dispute mediation** has delivered compensation and modification for pollution damage far faster and cheaper than litigation. And Korea's landmark **residents' movements** — the Saemangeum reclamation fight, the Miryang transmission-tower struggle, the Cheonseong Mountain tunnel "salamander" litigation, and others — show that organised, durable, sometimes decade-long community pressure reshapes projects and policy even when it does not stop a specific development. The through-line is that Korea rewards communities that combine the EIA-area legal route with sustained, organised local pressure.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics, not impressions: exact location and footprint, project type and size, what is on the land now (homes, farmland, rivers, tidal flats/wetlands, mountains, forest, coast, habitat), and what the project would do to it. Obtain the developer's **assessment report** (the draft, then the final EIA report) — it is publicised during the resident-opinion procedure, and it is where the developer, on the record, describes the impacts, admits the residual ones, and — crucially — **draws the EIA area**. List every admitted impact with its page reference, and mark exactly where the EIA-area boundary falls relative to your community.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) the **approving agency** that grants the licence or approval; (b) the **Ministry of Environment regional office** that consults on the EIA; (c) the **local governments** (province and si/gun/gu) whose permits and ordinances apply; and (d) whether the project is built or backed by a **state enterprise** (which signals a harder, national-priority fight). Name the officials and the politics: the governor, the mayor/county head, and the councils. Because Korea's live levers are legal, local, and political, know both the permitting officials and the elected decision-makers.

Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: a void approval (no or fatally defective EIA); tightened MOE

consultation conditions; refusal of a local permit or a stricter local ordinance; an **administrative litigation** win by EIA-area residents; a **dispute-mediation** award of compensation or modification; a governor or mayor withholding cooperation; or political defeat. Map the points and aim at the ones Korea actually responds to.

Question 4: When Is the Decision Final?

Diarise: the **resident-opinion window** (announced when the draft report is publicised — and remember you can *request a public hearing*); the expected approval date; the deadline for an **administrative appeal** to the Central Administrative Appeals Commission (generally within a set period — commonly 90 days of knowing of the disposition); and the deadline for **administrative litigation** (a revocation suit must generally be filed within **90 days** of knowing of the disposition and within **one year** of the disposition — confirm the exact dates the moment an approval issues). A **suspension-of-execution** motion should be filed promptly with any suit. Dispute-mediation claims have their own timelines.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: who profits, which companies or state enterprises are behind the project, whether land changed hands before the proposal, and whether any decision-maker has a tie to the developer. Use public sources — the **corporate registry**, the **real-estate registry** (등기), officials' asset disclosures, and public-procurement records. Build a dated, sourced timeline. Keep it rigorous; Section 11 covers doing it safely.

Output of Step 1: a one-page fact sheet with the project's exact description, the approving agency and MOE office, the local governments and elected officials, whether you are inside the EIA area, the specific act or lever to pursue, every deadline, and the money map.

Worked example: which lever is actually open

Suppose a landfill-and-incinerator complex is proposed near your neighbourhood. Working the questions: **Q1** — the draft report admits dioxin and particulate emissions, leachate risk to a nearby stream, heavy truck traffic, and odour — and its **EIA area** includes your homes. **Q2** — the facility needs an **approving-agency licence**, an **EIA with MOE consultation**, and **local permits** under the county's ordinances; check whether a public entity is behind it. **Q3** — the live levers are: a rigorous resident-opinion intervention (and a requested **public hearing**); tightened MOE conditions; an **administrative suit** — you have presumed standing because you live **inside the EIA area** — arguing the assessment is fatally defective; and an **environmental dispute mediation** claim if operation harms health or property. **Q4** — you diarise the resident-opinion window and, once the approval issues, the 90-day appeal/suit clocks and a suspension motion. **Q5** — the registry shows who owns the operator and when the land was bought. In an afternoon you know which levers are open — and that your position **inside the EIA area**, the resident-opinion procedure, and the mediation route, not a single dramatic move, are your strongest cards.

STEP 2: DOCUMENTATION

Documentation separates a campaign courts, agencies, and the public take seriously from one dismissed as complaint. It is also what the resident-opinion procedure, a dispute-mediation claim, and any court case all live or die on — and in Korea, proving you are **inside the EIA area** and proving concrete harm to health and property are especially decisive. Build three layers.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — you cannot show harm without a baseline, and once ground is broken the "before" is gone. Start the day you learn of the project.

Air, water, noise, and odour. Obtain existing monitoring data from the Ministry of Environment, its regional office, and the local government (Korea's pollution-control system generates a great deal of it), and record the current condition of your area — air quality, the water quality of nearby streams, rivers, and tidal flats, ambient noise and vibration, and the absence of odour. These are the classic pollution categories Korean law and the dispute-mediation system recognise.

Your position relative to the EIA area. Document, precisely, where your home, school, and workplace sit in relation to the project and the **EIA-area boundary** the developer has drawn. This is not an ordinary baseline item — in Korea it is often the decisive fact for standing, so map it carefully and keep the evidence (addresses, distances, the developer's own

boundary map).

Health and community. Document the human baseline — nearby homes, schools, hospitals, water sources, the age profile of residents, and existing health conditions — because Korean pollution law and the mediation system centre on concrete harm to health and living environment.

Nature and land. Document habitats, protected species, wetlands and tidal flats, forest, and farmland using MOE and local records, and note any protected-area, greenbelt, or Ramsar designation, which has featured in major fights.

How to hold it. Keep everything dated, sourced, geo-referenced, and backed up in a shared folder. A well-organised baseline is more useful than a merely large one. This layer is the foundation everything else stands on.

A note on doing your own measurements. You do not always need an expensive lab. Dated, geolocated photographs of a stream, a tidal flat, a hillside, or your neighbourhood *before* the project are evidence, and simple, consistent records — a monthly photo from the same spot, a note of a stream's flow or clarity, a log of existing noise and traffic at set times — build a baseline no developer's snapshot can match. Where a specific number will matter (leachate or water quality downstream, particulate levels near homes, noise from a facility), that is where to spend on a professional or ask a university department or an environmental group to help. This kind of record is doubly valuable in Korea, because the Environmental Dispute Mediation Committee decides pollution-damage claims on exactly such before-and-after evidence. The principle is to capture the ordinary, unremarkable "before" now, cheaply and often, because once the machines arrive it is gone forever and its absence is the single most common reason harm cannot later be proved.

LAYER 2: IMPACT ANALYSIS

Show what the project would do to that baseline. Your main text is the developer's **assessment report** — read it critically and catalogue four things:

1. **Admitted impacts** — every harm the report itself concedes, with page references. Unarguable.
2. **The EIA-area boundary and its adequacy** — whether the developer has drawn the affected area too narrowly to exclude affected residents (a recurring, challengeable move) and whether the assessment covers everyone actually affected.
3. **Underestimated or omitted impacts** — downplayed emissions, leachate, or traffic, and **cumulative effects** with existing facilities (a common, powerful gap).
4. **The resident-opinion record** — whether opinions were genuinely gathered and reflected, and whether a requested **public hearing** was properly held. A skipped or sham procedure is a documented defect.

Get expert eyes on it. A critique carries far more weight when a qualified professional — an environmental scientist, physician, or engineer — has reviewed and signed it, even pro bono. Universities, environmental organisations with technical capacity, and citizens' science networks are sources of expertise. The goal is a written impact critique that reads as technical, that the agency, the mediation committee, and a court can act on.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms, because that is what moves neighbours, councils, and the mediation committee. Document:

- **Health** — the specific risks from the project (emissions, dust, leachate, noise, odour) to nearby residents, drawing on recognised standards and, where possible, a physician's assessment. This is central to a dispute-mediation claim.
- **Economy and livelihoods** — effects on farming and fishing (fishing and aquaculture livelihoods are a powerful factor on the coast and estuaries, as the reclamation fights showed), local business, tourism, and property values. Quantify it.
- **Community and place** — the loss of a valued landscape, a tidal flat, a quiet neighbourhood, and the strain on the community.

Package this layer twice: a rigorous version for the procedure, mediation, and any court, and a plain-language one-page version for neighbours and the press.

How to Structure Your Documentation

- **Phase 1: Baseline (Months 1-2)** — assemble the "before" record before ground is broken; nail down your position inside the EIA area; request monitoring data early (see the next section).
- **Phase 2: Impact (Months 2-3)** — dissect the report and the EIA-area boundary; line up expert review before the resident-opinion window so your critique is ready to file.
- **Phase 3: Health/Economic (Months 3-4)** — quantify the human and economic stakes and package them.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data** — file opinions on time with your best evidence; the resident-opinion window is short.
- **Not proving your position in the EIA area** — this is often the decisive standing fact; document it precisely.
- **Only environmental data** — councils, the mediation committee, and courts respond to health, economic, and livelihood arguments too. Breadth wins.
- **No expert review** — an impact critique no qualified person has signed is easy to wave away.
- **Ignoring the developer's own admissions** — the report is a source of concessions. Quote it back, with page numbers.

Documentation Budget Breakdown (KRW)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Baseline data gathering	₩0-500,000	₩2,000,000-8,000,000
Expert technical report (health/air/water/noise)	₩0 (pro bono)	₩3,000,000-20,000,000
Independent monitoring/measurement	₩0-1,000,000	₩2,000,000-15,000,000
Legal consultation on the file	₩0 (clinic/network)	₩500,000-5,000,000
Printing/outreach materials	₩200,000-1,000,000	₩1,000,000-4,000,000

Much can be done for near-zero with pro-bono experts and public monitoring data. Spend where a paid report materially strengthens a dispute-mediation claim or a court case — one solid report on the decisive issue (usually health, air, water, or the EIA-area boundary) is worth more than five general ones.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a case already exists in public records. The job is knowing which record holds which fact, and pulling it before you need it. This section is the shopping list; it also points you to the sources this map links.

Start at the local government's and the MOE regional office's own sites. In Korea the official documents for a project — the assessment report, the resident-opinion notices, the approval and its conditions, and the applicable ordinances — are held and often publicised by the **approving agency**, the **Ministry of Environment / its regional office**, and the **local government**, and posted on their websites and public-inspection points. The **EIASS (환경영향평가 정보지원시스템)** environmental-assessment information system publishes assessment documents. The official documents for local projects (permits, consultations, council minutes) live on the **local-government sites** — check them regularly. The legal clock often runs from what is posted there.

The assessment report. Get the developer's draft and final reports as each is publicised — they are public during the resident-opinion procedure and via the assessment information system, and they are where the developer admits harm and draws the EIA area.

Baseline environmental data. MOE and regional-office monitoring of air, water, noise, and odour; MOE and local records for protected areas, wetlands, and species; and the developer's own assessment baseline.

Ownership and money. Company ownership from the **corporate registry**; land and parcels from the **real-estate registry (등기부)**; officials' asset disclosures; and public-procurement records.

How to force a document open. A request under the **Official Information Disclosure Act (공공기관의 정보공개에 관한 법률)** compels a public institution to release records it holds, within a set period, with an appeal if refused. This is a powerful, low-cost tool — use the wording in Section 8E.

Free and low-cost help. Environmental and public-interest legal groups litigate and advise (for example major environmental NGOs such as KFEM (환경운동연합) and Green Korea, and public-interest law groups), and university clinics and lawyers from environmental networks take some cases at reduced rates; the **Environmental Dispute Mediation Committee** offers a low-cost route for pollution-damage claims.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the deciding authority, and the local-ally entries point you to the residents' groups, NGOs, and watchdogs already working nearby. Pull that thread first, then follow it into the assessment system, the registries, and the disclosure requests above.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

Sustained, visible local pressure is the single biggest factor in whether a Korean project is stopped or reshaped — more so than in many countries, because the levers that matter (the governor's cooperation, the resident-opinion procedure, a dispute-mediation claim, political defeat of the project) all respond to organised residents. Korea has a deep and storied tradition of **residents' movements** (주민운동) and civic mobilisation: the neighbourhood committees, farmers' and fishers' associations, religious groups, and citizens' organisations that fought the great reclamation, transmission-tower, and infrastructure battles, some over more than a decade. Build that kind of movement.

Two principles carry special weight here: **breadth and legitimacy** (a movement that includes neighbourhood and residents' associations, farmers' and fishers' cooperatives, religious communities, and professionals is far harder to dismiss than a small activist core — and in Korea, a broad, rooted, and persistent movement is taken seriously), and **durability** (Korea's landmark fights were won or reshaped through years of steady pressure — petitions, council lobbying, public actions, and litigation — not a single protest).

PHASE 1: FOUNDATION (Months 1-2)

Step 1a: One-on-one conversations. Start with the people most directly affected — neighbours whose homes, health, water, land, or livelihood is at stake, and especially those **inside the EIA area**; farmers and fishers; local businesses. Personal conversations, not mass messages, build a durable core. Listen first: concrete local concerns (a fishing ground, a stream, a school's air, an elderly neighbourhood) motivate more than abstractions.

Step 1b: Affinity groups by concern. Let people plug in through what they care about — health, water and fishing, air and odour, traffic safety, land and livelihood. Different concerns reach different neighbours.

Step 1c: Form a residents' countermeasure committee (대책위원회). Create a **residents' countermeasure committee or citizens' group** (주민대책위원회·시민모임) with a name, representatives, a simple treasury, and minuted meetings — the classic Korean vehicle for these fights. It coordinates the resident-opinion drive, requests the public hearing, negotiates with the local government, files the dispute-mediation claim, and, if needed, organises plaintiffs (especially EIA-area residents) for litigation. Where a **neighbourhood association** (통·반, 자치회) exists, its formal position carries weight with local government.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Step 2a: Community meeting. Hold a public meeting to inform, gather support, and recruit; bring the maps (including the EIA-area boundary), the report's own admissions, and the resident-opinion deadline. A visible, united meeting also signals seriousness to the local government and the press.

Step 2b: Opposition materials. One-page, factual, sourced leaflets; lead with health, water/fishing, and living-environment stakes and the deadline. Include a simple model opinion and the fact that residents can **request a public hearing**.

Step 2c: Petition, mass opinions, and the hearing request. A signature drive (a familiar, respected Korean tool) and, above all, **mass individual opinions** submitted during the resident-opinion procedure, plus a formal **request for a public hearing** — many individual opinions carry more weight than one letter, and a hearing forces the developer into the open.

Step 2d: Media at launch. Time it to the resident-opinion window so coverage and the deadline reinforce each other.

PHASE 3: COALITION EXPANSION (Months 3-6)

Step 3a: Organisation outreach. Bring in national and regional environmental organisations (several litigate these cases — KFEM, Green Korea and others), farmers' and fishers' cooperatives (whose livelihoods and legitimacy the governor cannot ignore), religious and professional bodies, and medical and academic experts. Each adds credibility, reach, and sometimes lawyers.

Step 3b: Coalition agreements. Agree roles, spokespeople, and messaging clearly before disagreements arise. Who negotiates with the local government? Who instructs the lawyer and organises the EIA-area plaintiffs? Who files the mediation claim? Who speaks to the press? Settling this early prevents the splits — and the divide-and-compensate tactics

— that sink movements.

Step 3c: Coordinated public work. Joint opinions and hearing requests, joint mediation claims, shared experts and lawyers, shared costs, and a coordinated approach to the governor, the local councils, and the National Assembly.

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Step 4a: Political and council pressure. Lobby the local councils and the National Assembly for oversight attention; seek a formal council resolution against the project; press the mayor and governor to withhold cooperation or demand strict conditions. In Korea, a governor or mayor turned against a project is often decisive.

Step 4b: Public actions and media (ongoing). Lawful, orderly public meetings, rallies, one-person demonstrations (a distinctive Korean tactic that avoids assembly-permit limits), petitions handed over publicly, and steady media keep the issue alive and signal durability. Feed the story new pegs — the report, the hearing, the approval, the mediation claim, the lawsuit.

Step 4c: Prevent failure points. Movements fade or fracture when they miss the resident-opinion window, rely on sentiment over evidence, are split by selective compensation offers, or peak too early. Diarise every deadline, build the file, agree roles, guard unity against divide-and-compensate, and pace to the decision — which, in Korea's biggest fights, has run for years.

Worked example: a committee that unlocks the strong levers

A coastal community hears that a reclamation-and-industrial project will fill part of a tidal flat its shellfish gatherers depend on. A social-media group of thousands appears overnight — high energy, no leverage. What converts it into force happens in the first weeks and is deliberately unglamorous. First, the organisers form a named **residents' countermeasure committee** with representatives, minutes, and a treasury — the vehicle Korean officials expect to deal with. Second, they map exactly who lives and works **inside the EIA area**, because those residents have presumed standing to sue later. Third, they bring in the **fishers' cooperative** (어촌계), whose fishing rights are a distinct legal interest and whose members are directly, individually affected — exactly the plaintiffs a court and the dispute-mediation committee recognise, and exactly the constituency a governor listens to. Fourth, they line up a marine scientist and a physician to review the assessment, so their opinions read as evidence. By the time the resident-opinion procedure opens, the committee can submit mass opinions, **request a public hearing**, demand tightened MOE conditions, file a **dispute-mediation** claim for the fishers, and credibly threaten litigation with EIA-area plaintiffs. None of that required a lawsuit yet, but it made every later lever real. The lesson generalises: **in Korea, the committee you form and the EIA-area plaintiffs and cooperatives you organise in month one are what make the legal, mediation, and political levers real by month eight.**

Opposition Building Budget: Year-Long Campaign (KRW)

Highly variable. A lean, mostly-volunteer movement runs on **a few million won** (forming the committee, printing, petitions, meetings). A campaign expecting litigation should budget for **expert reports (₩3,000,000-20,000,000)** and **legal costs (variable; a contested administrative suit can run into the tens of millions of won, less with reduced-rate lawyers; dispute mediation is far cheaper)**. Korean movements typically fund the legal stage through **membership dues, donations (모금), and coalition cost-sharing**. Keep transparent accounts — it protects credibility and resists divide-and-compensate.

STEP 4: LEGAL CHALLENGES

Korea gives communities real legal tools, but they are configured differently from most countries, and choosing the right one — and establishing you are inside the EIA area — is essential. Three tracks — the resident-opinion procedure and local levers, administrative appeal and litigation, and environmental dispute mediation.

TRACK 1: THE RESIDENT-OPINION PROCEDURE AND LOCAL LEVERS (the front door)

During the assessment, submit written **opinions** (의견서) on the draft report, and **request a public hearing** (공청회) — residents have the right to demand one: - **It builds the record.** The developer must gather opinions and record whether they were reflected; an opinion ignored, or a hearing improperly denied, is a documented flaw you can raise later. - **Aim**

at procedure and substance. Strong points: an EIA area drawn too narrowly to exclude affected residents; inadequate assessment of alternatives; ignored cumulative effects; underestimated health, air, water, or odour impacts; and non-compliance with a stricter **local ordinance**.

Alongside the procedure, use the local levers: - **The local ordinance and permit route.** Press the province/si/gun/gu to apply — or strengthen — its ordinances and to withhold or condition the local permits the project needs. - **The MOE consultation.** Feed your evidence to the Ministry of Environment's regional office before it agrees the assessment, so the binding conditions are as strict as possible.

TRACK 2: ADMINISTRATIVE APPEAL AND LITIGATION (the standing-sensitive route)

- **Administrative appeal (행정심판).** Challenge an approval by appealing to the **Central Administrative Appeals Commission** — cheaper and faster than court, and sometimes a useful first step. File within the deadline (commonly 90 days of knowing of the disposition).
- **Administrative litigation (행정소송).** Sue to **revoke** the approval, or to have it **declared void** (the strongest ground — a project approved with no legally-required EIA is void). The pivotal issue is **standing**: you must show a "legally protected interest," and Korean courts **presume that residents inside the EIA area** have one, while those outside must prove concrete individual harm. **Deadlines are strict** — a revocation suit generally within **90 days** of knowing of the disposition and **one year** of the disposition. File a **suspension-of-execution (집행정지)** motion with the suit where works could start, because a final judgment is slow.
- **Constitutional and rights routes.** In some cases a constitutional complaint or a tort claim against the developer is available; take advice.

TRACK 3: ENVIRONMENTAL DISPUTE MEDIATION (Korea's distinctive low-cost route)

- **The Environmental Dispute Mediation Committee (환경분쟁조정위원회).** For pollution damage (noise, vibration, dust, air, water, odour), apply to the committee for **mediation, conciliation, or adjudication** — a low-cost, faster alternative to court that can award **compensation** and require **modification** of the operation. It is especially useful once a project is operating and causing harm, and it does not require the same standing hurdles as administrative litigation.
- **Framework Act on Environmental Policy.** Underpins the polluter's duty to compensate for pollution damage, supporting both mediation and civil claims.

The three legal challenge types

TYPE 1: THE RESIDENT-OPINION / LOCAL ROUTE (fastest, cheapest)

The opinion procedure, the requested public hearing, local ordinances and permits, and feeding the MOE consultation. No standing problem, and it builds the record for everything else.

TYPE 2: ADMINISTRATIVE APPEAL / LITIGATION (powerful where you're inside the EIA area)

Appeal and void/revocation suits — strongest when the EIA was skipped or fatally defective and when you can establish EIA-area (or concrete-harm) standing.

TYPE 3: ENVIRONMENTAL DISPUTE MEDIATION (low-cost compensation and modification)

The mediation committee for pollution damage — a distinctive, accessible route to compensation and operational change.

Legal Strategy Decision Tree

1. **Is the resident-opinion window open?** → Submit opinions now, **request a public hearing**, and push the local ordinance and the MOE consultation.
2. **Was the EIA skipped or fatally defective, and are you inside the EIA area?** → Prepare an **administrative suit** (void/revocation) with a suspension motion, within the deadline.
3. **Not sure of standing / already suffering pollution?** → Use **environmental dispute mediation** for compensation and modification — fewer standing hurdles.

4. **Project built?** → Pursue mediation and compliance monitoring, and, for damage, a **compensation claim**.

Litigation Success Factors

Establishing you are inside the EIA area (or proving concrete harm); the strongest available ground (a skipped or fatally defective EIA voids the approval); a rigorous, expert-backed evidence file; strict deadline discipline plus a suspension motion; and lawyers experienced in environmental administrative litigation. Missing any one weakens the case.

What to Avoid: Legal Failures

Failing to establish EIA-area standing; missing the strict 90-day/one-year deadlines; relying on sentiment instead of documented harm; and going to court when **dispute mediation** would deliver compensation and modification faster and cheaper.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific legal ground. Here is how the records you gathered map onto the arguments that most often work in Korea — so you file the right fact against the right rule.

No EIA where one was required → the approval is void. The single strongest ground. Feed it with: proof the project needed an EIA and that none (or only a defective substitute) was done.

A fatally defective assessment or resident-opinion procedure → revocation. Feed it with: the missing alternatives or cumulative analysis, and the record showing opinions were not gathered or a requested public hearing was denied.

An EIA area drawn too narrowly → standing and substantive challenge. Feed it with: evidence that affected residents (including you) were excluded from the assessment zone.

You live inside the EIA area → presumed standing to sue. Feed it with: your address, distance, and the developer's own EIA-area map.

Pollution damage to health or property → environmental dispute mediation. Feed it with: monitoring data, a physician's assessment, and quantified loss — for compensation and modification without the litigation standing hurdle.

Breach of the agreed MOE conditions or a local ordinance → complaint and enforcement. Feed it with: the conditions or the ordinance standard and dated evidence of breach.

The pattern: match one clean, documented fact to one clear ground, lead with the strongest (a void-making EIA failure, or your EIA-area standing), and use dispute mediation where standing is uncertain or harm is already occurring. An environmental legal group can tell you fast which ground is live.

STEP 5: MEDIA STRATEGY

Media rarely stops a project by itself, but it raises the political cost of approval, protects the movement, sustains momentum, and reaches experts and allies you would not otherwise find.

How Journalists Actually Work

Reporters need a story with a hook, a human face, a conflict, and a document. Hand them the assessment's own damning admissions (quoted, with page numbers), a named family, farmer, or fisher whose health or livelihood is at stake, a clear deadline, and a map or striking image (the threatened tidal flat, mountain, or neighbourhood). Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a deadline + a David-and-Goliath frame + a visual = coverage. Korean project fights — reclamation, transmission towers, incinerators, tunnels, industrial complexes, and base construction — draw regional and national attention on exactly this formula, especially where health, fishing rights, a protected wetland, or a long-suffering

community is at stake.

Know the Outlets That Cover This Beat

Map the national dailies and broadcasters and their environment desks, the strong regional and local press, and specialist environmental and civic media. Build a contact list with names and beats.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable local contact. One trusted relationship with a journalist beats a dozen cold releases. Offer access — to the site, to affected residents and fishers, to your experts.

Why media matters even when it doesn't make the front page

Coverage does quieter work: it reaches an expert who reviews the assessment for free, a lawyer from an environmental network, a council or Assembly member who did not grasp how many constituents object, and it creates a dated public record that protects the movement. A steady drumbeat of accurate coverage moves the governor and councils more reliably than one national splash — and Korea's biggest project fights became national stories that shifted policy.

Sample Media Timeline

Launch with the resident-opinion window; refresh at each milestone — the mass opinions, the public hearing, the approval, the mediation claim, the lawsuit, any suspension order. Each is a fresh news peg.

Media Measurement

Track coverage, but measure what matters: whether the governor, mayor, and councils are responding, whether the movement is growing, whether experts and allies come forward, and whether the politics around the project is shifting.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced. Submit important ones through the authority's registry or the resident-opinion process, and keep dated proof of anything you file.

8A. Email to a reporter (story pitch)

Subject: [City/County]: residents challenge [project] before [deadline] — documents attached

Dear [name],

A [project type] is proposed at [location, province]. The developer's own draft environmental assessment concedes [specific admitted impact, quoted, with page number], and its EIA area includes [our neighbourhood]. The resident-opinion window closes on **[date]**.

A residents' countermeasure committee, **[name]**, representing [number] households and [any coalition partners, e.g. the local fishers' cooperative], is submitting opinions, has requested a public hearing, and is preparing [a dispute-mediation claim / possible litigation]. The human stakes: [health/fishing/living-environment point].

I can connect you with affected residents and our experts, and arrange a site visit. Could we talk this week?

[Name] · [Committee] · [phone] · [email]

8B. Letter to a decision-maker (governor / mayor / approving agency / MOE office)

Subject: Request regarding [project] — [file/reference]

To [Governor / Mayor / the approving agency / the MOE regional office]:

We write on behalf of [residents' committee] regarding [project] at [location]. We respectfully ask you to

[refuse/withhold the approval or permit / apply the local ordinance strictly / require strict conditions in

the MOE consultation] for the following reasons:

1. [Ground 1 — e.g. the assessment underestimates the health/air/water impact on nearby residents.]
2. [Ground 2 — e.g. the EIA area is drawn too narrowly and excludes affected residents.]
3. [Ground 3 — e.g. cumulative impact with the existing [facility] was not assessed.]

We request a written response and a meeting. We are ready to provide the underlying evidence.

[Signatories, committee, contact]

8C. Resident opinion (의견서) on the assessment

Opinion on the [draft environmental assessment] for [project], publicised [date]

[Name / residents' committee] submits the following within the resident-opinion period, and **requests that a public hearing (공청회) be held**: 1. **EIA area**. [The affected area is drawn too narrowly; our homes/livelihoods are affected but excluded.] 2. **Alternatives**. [The assessment does not genuinely consider alternatives, including not proceeding.] 3. **Cumulative impact**. [This project, with the existing [facility], must be assessed together.] 4. **Health and living environment**. [The impact on nearby residents' health and living environment (air/water/noise/odour) is underestimated; documented harm attached.]

We request that these opinions be reflected, that a public hearing be held, and that the project be [not approved / subjected to strict conditions].

[Date, name, contact; attach evidence]

8D. Coalition outreach letter (to an organisation or cooperative)

Subject: Please join the effort on [project] — [area]

Dear [organisation / fishers' cooperative / neighbourhood association],

We are a residents' committee opposing [project] at [location], which threatens [stakes — e.g. fishing grounds, health, water]. We are building a coalition to submit opinions, request a public hearing, pursue environmental dispute mediation, and prepare possible litigation by residents inside the EIA area.

Your [fishing rights / standing in the community / expertise] would strengthen the effort greatly. Could we meet to agree how to work together?

[Name, committee, contact]

8E. Information-disclosure request (정보공개청구)

Subject: Request for disclosure of documents concerning [project/site]

To [approving agency / MOE regional office / local government]:

Under the **Official Information Disclosure Act**, we request: 1. the full environmental assessment report and approval documents for [project]; 2. the record of the resident-opinion procedure and any public hearing, and the MOE consultation and its conditions; 3. [specific data — air/water/noise monitoring for the site, and the EIA-area map].

Please disclose these within the statutory period. If any part is withheld, please state the specific legal basis.

[Name/committee, date, contact]

8F. Legal-action instruction to counsel (administrative suit / mediation)

Subject: Proposed administrative action / dispute mediation regarding [project]

To [counsel]:

[Residents' committee / named residents inside the EIA area] intend to [seek revocation / a declaration that the approval is void] regarding [project], on the grounds that [no/defective EIA / the resident-opinion procedure was not properly followed / the EIA area was drawn too narrowly]. We can provide: proof of residence inside the EIA area, health and monitoring evidence, and expert reports. Please advise on standing, a **suspension-of-execution** motion given the [imminent] works, the deadlines, and whether **environmental dispute mediation** is a better route for the pollution-damage aspects.

[Date, signature]

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

[City] residents submit [number] opinions against [project] and demand a public hearing

[Residents' committee] today submitted [number] opinions on [project] at [location], citing [top two grounds], and formally requested a public hearing. "[Short, human quote from an affected resident or fisher]," said [name, role].

The developer's own assessment admits [quoted impact], and its EIA area includes [our neighbourhood]. The approval rests with [agency]; the resident-opinion window closes on [date].

Contact: [name, phone, email]. Photos, the full opinions, and interviews available on request.

8H. Environmental dispute mediation application (to the committee, for damage)

Subject: Application for environmental dispute mediation regarding [project/facility]

To the [Central/Regional] Environmental Dispute Mediation Committee:

We, residents of [area], apply for [mediation/adjudication] regarding pollution damage from [project/facility] at [location], comprising [noise/dust/odour/air/water] harm to our [health/property/livelihood]. We seek [compensation and modification of the operation, including limits and monitoring]. We attach [monitoring data, a physician's assessment, and evidence of loss].

[Residents' committee, date, contact]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual documents and dates, and — for anything heading to court — have counsel experienced in environmental administrative litigation review it. Deadlines are strict (the 90-day/one-year suit windows, and the resident-opinion window); keep dated proof of everything you file, and establish your position inside the EIA area.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can build a committee or run a multi-year campaign. If you have an afternoon a week, you can still do real damage to a bad project. In rough order of impact for the effort:

1. **Submit an opinion during the resident-opinion procedure, before the deadline — and request a public hearing.** One page, in your own words, citing one or two concrete problems (health, water/fishing, the EIA area drawn too narrowly). It costs nothing, goes on the record, and the hearing request forces the developer into the open. This is the highest-value single act.
2. **Get the assessment report and quote its worst admission back to the authority.** The developer's own words carry more weight than any outside claim.
3. **Confirm whether you live inside the EIA area — and tell your neighbours who do.** Those residents have presumed standing to sue later; knowing who they are is worth more than any protest.
4. **If pollution is already occurring, apply to the Environmental Dispute Mediation Committee.** It is low-cost and can win compensation and modification without a full court case.
5. **Send one accurate email to a local reporter** (Section 8A). A single story raises the political cost and can reach an expert or a lawyer.
6. **File one information-disclosure request** (Section 8E) — including the EIA-area map and the MOE conditions, which often break the case open.
7. **Tell your neighbourhood association and council member** — a formal local position carries real weight with the governor and mayor.

If you do only the first three, you have preserved the record, forced the hearing question, and identified the EIA-area plaintiffs who give any later case its standing — a real contribution others can build on.

WHEN THE SYSTEM IS TILTED

Korea's system leans toward development, and the resident-opinion procedure is often treated as a formality. Being honest about this is how you pick the tools that actually work.

What This Tilt DOES (and DOESN'T DO)

The tilt makes the *paper procedure* lean toward yes and makes courts cautious about second-guessing agencies. It does **not** close the doors: residents **inside the EIA area** can get into court; a **skipped or fatally defective EIA voids an approval**; the **Environmental Dispute Mediation Committee** offers a low-cost route to compensation and modification; local ordinances and permits are real; and **political pressure on the governor and mayor** works. The key is to combine them and to concentrate force where the tilt is weakest — the EIA-area standing, the void-making EIA failures, and the mediation route.

Reading Your Tilt: Responsive, Mixed, National-Priority

- **Responsive local government.** A governor or mayor open to residents' concerns. Here, the opinion procedure, the ordinance, local permits, and political pressure do real work.
- **Mixed.** A local government that wants the investment but is sensitive to the politics. Weight shifts toward organised pressure, media, dispute mediation, and a credible EIA-area lawsuit.
- **National-priority / state-enterprise project.** A project the central government or a state enterprise is committed to (major reclamation, a transmission line, a strategic complex). Assume the paper procedure is a formality and the fight will be long; prepare the **EIA-area lawsuit, dispute mediation, the local levers, and a sustained political and media campaign**. Even here, delay, redesign, compensation, and policy change are achievable — Korea's landmark fights, though often unable to stop a specific project, reshaped national policy and won compensation and modification.

Documented Korean Dynamics

The record shows both the wall and the way through. The Saemangeum reclamation litigation established that EIA-area residents have standing and forced years of legal and political contest even as the project proceeded; the Miryang transmission-tower struggle showed a decade of organised, sometimes fierce residents' resistance forcing compensation, modification, and national debate; the Cheonseong Mountain tunnel "salamander" case tested environmental standing in a novel way; and countless incinerator and landfill fights have been resolved through dispute mediation and local pressure. The lesson: **combine the EIA-area legal route and mediation with durable, organised local pressure — and measure success in delay, conditions, compensation, and policy change, not only in stopping a specific project.**

Assessment Framework — Determine Your Situation

Ask: Was an EIA required and properly done (its failure voids the approval)? Do you have residents inside the EIA area to serve as plaintiffs? Is pollution already occurring (mediation route)? Is the governor or mayor persuadable? Is a state enterprise behind it (a harder, national-priority fight)? The answers tell you whether to lead with the lawsuit, mediation, or political and media pressure — usually a combination.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Korean movements use petitions, public meetings, rallies, and — distinctively — **one-person demonstrations (1인 시위)**, which fall outside assembly-permit requirements and are widely used. Public assembly is constitutionally protected but regulated and can require notification. Know the law, stay lawful and orderly, prioritise safety, and get legal advice before anything that could carry legal risk. This guide notes such tactics exist; it does not advise breaking the law, and the movement's credibility is an asset worth protecting.

Honest Assessment

Tilted fights are harder and some specific projects are not stopped. But "harder" is not "hopeless" — the EIA-area lawsuit,

dispute mediation, local levers, and durable political pressure have delayed, reshaped, and won compensation and policy change on Korea's biggest projects, and even an ultimate loss on one project often buys years of delay, tightened conditions, compensation, and an organised, experienced community. Concentrate force where the tilt is weakest, and settle in for a long campaign if the stakes justify it.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and it does not look the same in every institution. Read your specific situation actor by actor, because the type of capture changes which lever works — and, sometimes, tells you a lever is closed. Handle it carefully: the same facts that can sink a project can expose you to a defamation suit if you get them wrong (Korean defamation law is strict, and even true statements can carry liability if not in the public interest).

Local officials and council members. The most common pressure point: a local government dependent on a project's investment and tax base, or an official with a tie to the developer. Signs: a rushed permit, a sudden zoning change, a consultation that ignores its own record. Lever: the conflict-of-interest and public-service ethics rules, and the **residents' audit / Board of Audit** routes for improper spending — lower bars than proving bribery.

The approving agency and the MOE consultation. Capture here is usually softer — pressure to approve, or reliance on the developer's own consultants. Signs: an assessment that reads as the developer's document, or MOE conditions that are toothless. Lever: feed independent evidence into the consultation, and challenge the assessment's adequacy in court.

The developers and state enterprises. Watch for land bought quietly before a project is public, opaque contracting, hospitality and revolving-door ties, and selective compensation used to split communities. The corporate and real-estate registries surface the timeline a journalist or the prosecutors need. Korea's construction and public-works sectors have a documented history of bid-rigging (담합) — a specific thing to watch and, if evidenced, report.

The courts. Korea's courts are independent and not corrupt, but they are **cautious about second-guessing agencies**, and standing is a real barrier for those outside the EIA area. Treat this as a structural feature to route around (via EIA-area plaintiffs and dispute mediation) rather than misconduct to expose; and seek a suspension order where works could start before judgment.

National politicians and ministries. Where a project is a national priority, expect wide discretion exercised in its favour. That is not corruption, but capture of a kind; the honest path is the EIA-area legal route, mediation, and public pressure.

How to act on it, safely. Document from public sources before you speak. Route serious allegations through lawyers and the proper bodies — the **prosecutors and police** for bribery or bid-rigging, the **Board of Audit and Inspection** for public money, the **Anti-Corruption and Civil Rights Commission** for corruption and civil-rights complaints — not social media. A reckless public accusation can expose you to defamation liability and hand the developer a way to change the subject and split the community. Name capture privately in your strategy; prove it publicly only when you can.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other over a campaign that typically spans a year or more (and litigation, if it comes, much longer — Korea's biggest fights ran for years). Here is how they fit onto one timeline.

Realistic 12-Month Campaign Timeline

Months 1-2 (Foundation). - Identify the target precisely (Step 1) and write the one-page fact sheet — project, approving agency and MOE office, local governments, elected officials, whether you are inside the EIA area, the lever to pursue, every deadline. - Form the residents' countermeasure committee and, where it exists, engage the neighbourhood association. - Begin baseline documentation (Step 2, Layer 1) before ground is broken, and nail down who lives inside the EIA area. - Request records via information disclosure, including the EIA-area map. - Start one-on-one organising (Step 3, Phase 1).

Months 2-3 (Launch). - Submit opinions during the resident-opinion procedure — the key participation deadline — run a

signature drive and mass opinions, and **request a public hearing** (Step 4, Track 1). - Press the local ordinance and permits, and feed the MOE consultation. - Hold the community meeting and launch media timed to the window (Steps 3 & 5). - Complete the assessment critique with expert help, focusing on health, the EIA-area boundary, and cumulative impact (Step 2, Layer 2).

Months 3-6 (Expansion). - Build the coalition — bring in environmental organisations, fishers'/farmers' cooperatives, and experts (Step 3, Phase 3). - Finish the health/economic analysis (Step 2, Layer 3). - Assess the legal routes: identify the EIA-area plaintiffs; prepare a dispute-mediation claim if pollution is occurring. - Sustain media and begin council and political lobbying.

Months 6-12 (Pressure & Decision). - Escalate political pressure on the governor, mayor, and councils (Step 3, Phase 4). - When the approval issues, act fast: consider an **administrative appeal**, and file an **administrative suit** (void/revocation) with a **suspension motion** within the strict deadline if you have EIA-area standing (Step 4, Track 2). - File a **dispute-mediation** claim for pollution damage where relevant (Track 3).

Beyond 12 months. - Litigation and appeals run through three court levels and can take years; the suspension motion is what protects you in the meantime. - If the project proceeds, pursue dispute mediation, compliance monitoring, and, for damage, compensation claims. - Keep the committee and the file alive; the movement and evidence are assets for the next fight.

Warning Signs — Act Early

The resident-opinion window is open (submit opinions and request a hearing now); land is being quietly bought; a national-priority or state-enterprise project is announced; the developer is holding briefing sessions; selective compensation offers start circulating (a divide-and-compensate warning). Early action beats late reaction — and identifying the EIA-area plaintiffs and preparing the mediation claim early is far stronger than scrambling after an approval issues.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: identify the live lever (usually the EIA-area route, mediation, and local/political pressure); build a broad, durable residents' committee and guard it against divide-and-compensate; document rigorously, including EIA-area position and health harm; use the void-making EIA failures and EIA-area standing, or dispute mediation; sustain media and political pressure on the governor and mayor; and hit every strict deadline. Losing campaigns: fail to establish EIA-area standing; miss the 90-day/one-year windows; rely on sentiment; get split by selective compensation; peak early; or miss the resident-opinion window.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Korea takes several forms, and it is worth naming them so you recognise a win when you get one: - an approval **declared void** because the EIA was skipped or fatally defective; - **tightened MOE consultation conditions**, or a local permit refused or heavily conditioned; - an **administrative court win** by EIA-area residents (rare but powerful), or a **suspension order** buying time; - **compensation and modification** won through **environmental dispute mediation**; - a **governor or mayor withholding cooperation**, or a **council turning against the project**; - a project **delayed for years** until its economics or politics collapse, or a **redesign** that removes the worst harm; - or **policy change** driven by a landmark fight even where the specific project proceeds.

Korean communities have achieved each — usually through organised local pressure plus the EIA-area legal route, dispute mediation, and political pressure, not through a single dramatic court win.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If you have EIA-area standing and a void-making or serious EIA defect, litigation may be worth it, with a suspension motion. If standing is doubtful or harm is already occurring, **dispute mediation** may deliver compensation and modification faster and cheaper. If every legal avenue is exhausted, redirect to mediation, compliance monitoring, the next permit stage, or the next election. Continuing is not always right; neither is quitting at the first setback — Korea's biggest wins came after years of persistence.

The Bottom Line

Korea's system leans toward development and often treats participation as a formality — but it hands communities a distinctive and usable set of levers: a **resident-opinion procedure** with a right to demand a public hearing; a rule that a **skipped or fatally defective EIA voids an approval; presumed standing for residents inside the EIA area**, which actually opens the courthouse door; a low-cost **Environmental Dispute Mediation** route to compensation and modification; strong local government and ordinances; and a deep tradition of residents' movements. Communities that organise broadly and durably, document to the health and EIA-area standards, use the EIA-area legal route or dispute mediation rather than betting on a single dramatic move, guard their unity against divide-and-compensate, and keep steady political and media pressure on the governor and mayor have voided approvals, tightened conditions, won compensation, delayed and reshaped projects, and changed policy — and can again. No single step wins; the combination does. Start today by finding your deadlines, forming your committee, confirming who lives inside the EIA area, and identifying which lever is actually open.